Discuss Revisions to
Board Policy FNG (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy FNG (Local) Student Rights and Responsibilities: Student and Parent Complaints/Grievances

Explanation:
The Administration recommended revisions to Board Policy FNG Student Rights and Responsibilities: Student and Parent Complaints/Grievances. The Administration recommends that the updated Local Board Policy FNG (Local) be adopted as presented.

Policy Reference: FNG Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

~~Complaints~~

~~In this policy, the terms "complaint" and "grievance" shall have the same meaning.~~

Other ~~Complaint~~ Grievance Processes

Student or parent ~~complaints~~ grievances shall be filed in accordance with this policy, except as required by the policies listed below. Some of these policies require appeals to be submitted in accordance with FNG after the relevant ~~complaint~~ grievance process:

1. ~~Complaints~~ Grievances alleging discrimination or harassment based on race, color, religion, sex, gender, national origin, age, or disability shall be submitted in accordance with the FFH series.
2. ~~Complaints~~ Grievances concerning dating violence shall be submitted in accordance with the FFH series.
3. ~~Complaints~~ Grievances concerning retaliation related to discrimination and harassment shall be submitted in accordance with the FFH series.
4. ~~Complaints~~ Grievances concerning bullying or retaliation related to bullying shall be submitted in accordance with FFI.
5. ~~Complaints~~ Grievances concerning failure to award credit or a final grade on the basis of attendance shall be submitted in accordance with FEC.
6. ~~Complaints~~ Grievances concerning expulsion shall be submitted in accordance with FOD and the Student Code of Conduct. 358
7. ~~Complaints~~ Grievances concerning any final decisions of the gifted and talented selection committee regarding selection for or exit from the gifted program shall be submitted in accordance with EHBB.
8. ~~Complaints~~ Grievances within the scope of Section 504, including ~~complaints~~ grievances concerning identification, evaluation, or educational placement of a student with a disability, shall be submitted in accordance with FB and the procedural safeguards handbook.
9. ~~Complaints~~ Grievances within the scope of the individuals with Disabilities Education Act, including ~~complaints~~ grievances concerning identification, evaluation, educational placement, or discipline of a student with a disability, shall be submitted in accordance with EHBAE, FOF, and the procedural safeguards handbook provided to parents of all students referred to special education.
10. ~~Complaints~~ Grievances concerning instructional resources shall be submitted in accordance with the EF series.
11. ~~Complaints~~ Grievances concerning a commissioned peace officer who is an employee of the District shall be submitted in accordance with the CKE series.
12. ~~Complaints~~ Grievances concerning intradistrict transfers or campus assignment shall be submitted in accordance with FDB.
13. ~~Complaints~~ Grievances concerning admission, placement, or services provided for a homeless student shall be submitted in accordance with FDC.
14. ~~Complaints~~ Grievances concerning disputes regarding a student's eligibility for free or reduced-priced meal programs shall be submitted in accordance with COB.

~~Complaints~~ Grievances regarding refusal of entry to or ejection from District property based on Education Code 37.105 shall be filed in accordance with this policy. However, the timelines shall be adjusted as necessary to permit the complainant to address the Board in person within 90 calendar days of filing the initial ~~complaint~~ grievance, unless the ~~complaint~~ grievance is resolved before the Board considers it. [See GKA(LEGAL)]

Notice to Students And Parents

The District shall inform students and parents of this policy through appropriate District publications. This grievance policy shall be used to address alleged violations of rights guaranteed by Chapter 26 of the Texas Education Code. [See FA]

Guiding Principles

Informal Process

The Board encourages students and parents to discuss their concerns with the appropriate teacher, principal, or other campus administrator who has the authority to address the concerns. Concerns should be expressed as soon as possible to allow early resolution at the lowest possible administrative level.

Informal resolution shall be encouraged but shall not extend any deadlines in this policy, except by mutual written consent and as stated in this policy.

Formal Process

A student or parent may initiate the formal process described below by timely filing a written ~~complaint~~ grievance on the District's form.

Even after initiating the formal ~~complaint~~ grievance process, students and parents are encouraged to seek informal resolution of their concerns. A student or parent whose concerns are resolved may withdraw a formal ~~complaint~~ grievance at any time.

The process described in this policy shall not be construed to create new or additional rights beyond those granted by law or Board policy, nor to require a full evidentiary hearing or "mini-trial" at any level.

Freedom From Retaliation

Neither the Board nor any District employee shall unlawfully retaliate against any student, ~~or~~ parent, or person standing in parental relation for bringing a concern or ~~complaint~~ grievance.

General Provisions

359

Filing

~~Complaint~~ Grievance forms and appeal notices may be filed by hand-delivery, by electronic communication, including email and fax, or by U.S. Mail. Hand-delivered filings shall be timely filed if received by the appropriate administrator or designee by the close of business on the deadline. Filings submitted by electronic communication shall be timely filed if they are received by the close of business on the deadline, as indicated by the date/time shown on the electronic communication. Mail filings shall be timely filed if they are postmarked by U.S. Mail on or before the deadline and received by the appropriate administrator or designated representative no more than three days after the deadline.

Scheduling Conferences

The District shall make reasonable attempts to schedule conferences at a mutually agreeable time. If a student or parent fails to appear at a scheduled conference, the District may hold the conference and issue a decision in the student's or parent's absence.

Response

At Levels One and Two, "response" shall mean a written communication to the student or parent from the appropriate administrator. Responses may be hand-delivered, sent by electronic communication to the student's or parent's email address of record, or sent by U.S. Mail to the student's or parent's mailing address of record. Mailed responses shall be timely if they are postmarked by U.S. Mail on or before the deadline.

Days

"Days" shall mean District business days, unless otherwise noted. In calculating timelines under this policy, the day a document is filed is "day zero." The following business day is "day one."

Representative

"Representative" shall mean any person who or organization that is designated by the student or parent to represent the student or parent in the ~~complaint~~ grievance process. A student may be represented by an adult at any level of the ~~complaint~~ grievance.

The student or parent may designate a representative through written notice to the District at any level of this process. If the student or parent designates a representative with fewer than three days' notice to the District before a scheduled conference or hearing, the District may reschedule the conference or hearing to a later date, if desired, in order to include the District's counsel. The District may be represented by counsel at any level of the process.

Consolidating ~~Complaints~~ Grievances

~~Complaints~~ Grievances arising out of an event, or a series of related events shall be addressed in one ~~complaint~~ grievance. A student or parent shall not file separate or serial ~~complaints~~ grievances arising

from any event or series of events that have been or could have been addressed in a previous ~~complaint~~ grievance.

Untimely Filings

All time limits shall be strictly followed unless modified by mutual written consent.

If a ~~complaint~~ grievance form or appeal notice is not timely filed, the ~~complaint~~ grievance may be dismissed, on written notice to the student or parent, at any point during the ~~complaint~~ grievance process. The student or parent may appeal the dismissal by seeking review in writing within ten days from the date of the written dismissal notice, starting at the level at which the ~~complaint~~ grievance was dismissed. Such appeal shall be limited to the issue of timeliness.

Costs Incurred

Each party shall pay its own costs incurred in the course of the ~~complaint~~ grievance.

~~Complaint~~ Grievance And Appeal Forms

~~Complaints~~ Grievances and appeals under this policy shall be submitted in writing on a form provided by the District.

Copies of any documents that support the ~~complaint~~ grievance should be attached to the ~~complaint~~ grievance form. If the student or parent does not have copies of these documents, they may be presented at the Level One conference. ~~After the Level One conference, no new documents may be submitted by the student or parent unless the student or parent did not know the documents existed before the Level One conference.~~ 360

A ~~complaint~~ grievance or appeal form that is incomplete in any material aspect may be dismissed but may be refiled with all the required information if the refiling is within the designated time for filing.

Recusal

A District employee or Board member involved in reviewing a grievance must recuse himself or herself from the review process if that employee or Board member is the subject of the grievance. If a Board member files a grievance, he or she shall be prohibited from voting on matters related to that grievance. If the designated administrator at any level of the review process is required to recuse himself or herself, the grievance shall be subject to a higher level of review.

Grievance Record

At each level of the grievance review process, a record shall be created and retained by the District. This record shall include:

1. Documents submitted by the person who filed the grievance or determined relevant by school district personnel; and
2. A written record of the decision, including an explanation of the basis for the decision and an indication of each document that supports the decision.

The person who filed the grievance may supplement the record with additional documents or add additional claims.

Remand

At any time, a grievance may be remanded to a lower level of review to develop a record, including when a grievance is pending before the Board of Trustees.

Decisions Made on the Merits

At each level in the grievance review process, the District shall issue a decision on the merits of the concern raised in the grievance, notwithstanding procedural errors or the type of relief requested.

Level One

~~Complaint~~ Grievance forms must be filed:

1. Within ~~15~~ 60 calendar days of the date the student or parent (or person standing in parental relation) first knew~~, or with reasonable diligence should have known, of the decision or~~

~~action~~ or had reason to know of the facts giving rise to the ~~complaint or~~ grievance, or the later of:

a. 90 calendar days of the date the student or parent (or person standing in parental relation to a student) first knew or had reason to know of the facts giving rise to the grievance if the grievant engaged in informal attempts to resolve the grievance, or

b. 30 calendar days from the date on which the District provided information to the grievant regarding how to file the grievance; and

2. With the principal's or principal's designee's office at the school campus at which the student attends or at which the facts giving rise to the grievance occurred, or, for a grievance that arises from a subject matter unrelated to a campus, with an administrator at the District's central office. ~~District's legal office.~~

In most circumstances, students and parents shall file Level One grievances with the campus principal.

If the only administrator who has authority to remedy the alleged problem is the Superintendent or designee or the grievance arises from subject matter unrelated to a specific campus, the grievance may begin at Level Two following the procedure, including deadlines, for filing the grievance form at Level One.

361

If the ~~complaint~~ grievance is not filed with the ~~District's legal office~~ appropriate administrator as stated above, the receiving administrator must note the date and time the ~~complaint~~ grievance form was received and immediately forward the ~~complaint~~ grievance form to the ~~District's legal office~~ appropriate administrator as stated above.

The ~~Level One hearing officer~~ principal, designee, or other appropriate administrator shall investigate as necessary and schedule a conference with the student or parent within ten calendar days after the date the grievance was initially filed ~~receipt of the written complaint~~. The ~~hearing officer~~ principal, designee, or other appropriate administrator may set reasonable time limits for the conference.

~~Absent extenuating circumstances, the~~ The ~~hearing officer~~ principal, designee, or other appropriate administrator shall provide the student or parent a written response within ~~ten~~ 20 calendar days following the conference. The written response shall set forth the basis of the decision, any relief or redress to be provided and information regarding filing an appeal, including the timeline for filing such appeal under this policy and under Texas Education Code § 7.057, as applicable. In reaching a decision, the ~~hearing officer~~ principal, designee, or other appropriate administrator may consider information provided at the Level One conference and any other relevant documents or information the ~~hearing officer~~ principal, designee, or other appropriate administrator believes will help resolve the ~~complaint~~ grievance.

Level Two

If the student or parent did not receive the relief requested at Level One or if the time for a response has expired, the student or parent may request a conference with the designated Level Two administrator to appeal the Level One decision. The designated Level Two administrator shall be the Superintendent or the Superintendent's designee at the District's central office.

The appeal notice must be filed in writing, on a form provided by the District~~'s legal office~~, within ~~ten~~ 20 calendar days of the date of the written Level One response or, if no response was received, within ~~ten~~ 20 calendar days of the Level One response deadline.

After receiving notice of the appeal, the ~~Level One hearing officer~~ principal, designee, or other appropriate administrator who considered the grievance at Level One shall prepare and forward a record of the Level One ~~complaint~~ grievance to the ~~legal office and the~~ Level Two ~~hearing officer~~ administrator. The student or parent may request a copy of the Level One record.

The Level One record shall include:

1. The original ~~complaint~~ grievance form and any attachments.
2. All other documents submitted by the student or parent at Level One.

3. The written response issued at Level One and any attachments.
4. All other documents relied upon by the Level One ~~hearing officer~~ administrator in reaching the Level One decision.

The Level Two ~~hearing officer~~ administrator shall schedule a conference within ten calendar days after the appeal notice is filed. The conference shall be limited to the issues and documents considered at Level One. At the conference, the student or parent may provide information concerning any documents or information relied upon by the administration for the Level One decision. The Level Two ~~hearing officer~~ administrator may set reasonable time limits for the conference.

The ~~hearing officer~~ Level Two administrator shall provide the student or parent a written response within ~~ten~~ 20 calendar days following the conference. The written response shall set forth the basis of the decision, any relief or redress to be provided and information regarding filing an appeal, including the timeline for filing such appeal under this policy and under Texas Education Code § 7.057, as applicable. In reaching a decision, the ~~hearing officer~~ Level Two administrator may consider the Level One record, information provided at the Level Two conference, and any other relevant documents or information the ~~hearing officer~~ Level Two administrator believes will help resolve the ~~complaint~~ grievance.

Recordings of the Level One and Level Two conferences, if any, shall be maintained with the Level One and Level Two records. 362

Level Three

If the student or parent did not receive the relief requested at Level Two or if the time for a response has expired, student or parent may appeal the decision to the Board.

The appeal notice must be filed in writing, on a form provided by the District~~'s legal office~~, within ~~ten~~ 20 calendar days of the date of the written Level Two response or, if no response was received, within ~~ten~~ 20 calendar days of the Level Two response deadline.

The ~~legal office~~ Superintendent or designee shall inform the student or parent of the date, time, and place of the Board meeting at which the ~~complaint~~ grievance will be on the agenda for presentation to the Board. The Board or its committee must hold a meeting to discuss the grievance not later than the 60th day after the date on which the previous decision on the grievance was made.

The ~~legal office~~ Superintendent or designee shall provide the Board the record of the Level Two appeal. The student or parent may request a copy of the Level Two record.

The Level Two record shall include:

1. The Level One record.
2. The notice of appeal from Level One to Level Two.
3. The written response issued at Level Two and any attachments.
4. A summary of all previous oral testimony.
5. All other documents relied upon by the ~~Level Two hearing officer~~ administration in reaching the Level Two decision.

The appeal shall be limited to the issues and documents considered at Level Two, except that if at the Level Three hearing the ~~administration~~ Board of Trustees intends to rely on evidence not included in the Level Two record, the ~~administration~~ Superintendent or designee shall provide the student or parent ~~notice of the nature~~ a description of the evidence at least ~~three~~ five days before the hearing.

The grievant may request that the hearing or meeting at which the grievance will be discussed by open or closed, unless otherwise required by law. If the grievant does not make this request, t~~T~~he ~~District~~ Board of Trustees shall determine whether the ~~complaint~~ grievance will be presented in open or closed meeting in accordance with the Texas Open Meetings Act and other applicable law. [See BE]

The presiding officer may set reasonable time limits and guidelines for the presentation, including an opportunity for the student or parent and administration to each make a presentation and provide rebuttal and an opportunity for questioning by the Board. The Board shall hear the ~~complaint~~

grievance and may request that the administration provide an explanation for the decisions at the preceding levels.

In addition to any other record of the Board meeting required by law, the Board shall prepare a separate record of the Level Three presentation. The Level Three presentation, including the presentation by the student or parent or the student's representative, any presentation from the administration, and questions from the Board with responses, shall be recorded by audio recording, video/audio recording, or court reporter.

The Board shall then consider the ~~complaint~~ grievance. ~~It~~ The Board shall ~~may~~ make and give notice of its decision orally or in writing not later than the 30th day after the date on which the Board or its committee considers the grievance ~~at any time up to and including the next regularly scheduled Board meeting~~. ~~If the Board does not make a decision regarding the complaint by the end of the next regularly scheduled meeting, the lack of a response by the Board upholds the administrative decision at Level Two.~~

Report to TEA

The District shall annually submit to TEA a report on grievances filed in the District during the preceding year. For each grievance included on the report, the District shall include the resolution of the grievance and any corrective action taken.

363

Availability of Policy

The following shall be made available in a prominent location on the District's website and included in the Student Handbook:

- This policy;
- The grievance and appeal forms referenced in this policy;
- The method by which a grievance may be filed electronically.

Appeal To Commissioner

Except as may be provided to the contrary by state or federal law or other District policies, Level Three decisions by the Board may be appealed to the Commissioner of Education as outlined in Education Code 26A.